



CONFIDENTIALITY, NON-CIRCUMVENTION AND NON-SOLICITATION AGREEMENT (Vendor NDA)

1. PARTIES

This Agreement is entered into as of 26 April 2024 ("Effective Date") between:

Dessimate LLC, a Delaware limited liability company, with its principal place of business at The Green #19175, Dover, DE 19901, USA ("Dessimate"), and GMT Corporation pvt ltd with its principal place of business at Plot no. 97 to 101. 114, Sector B, Parvati Co-op Industrial Estate Yadrav - 416 146 Maharashtra ("GMTCP").

Dessimate and Vendor may be referred to individually as a "Party" and collectively as the "Parties."

2. PURPOSE

Dessimate may disclose certain confidential, proprietary, and commercially sensitive information to Vendor in connection with:

- Requests for quotation (RFQs)
- Manufacturing, sourcing, and supply of components or products
- Evaluation of potential or ongoing business relationships

(collectively, the "Purpose"). Vendor agrees to use such information solely for the Purpose and for no other reason.

3. CONFIDENTIAL INFORMATION

"Confidential Information" means all non-public information disclosed by Dessimate, including but not limited to:

- Customer identities (including but not limited to customers such as Det-Tronics, where applicable)
- Pricing, cost structures, and margins
- Technical data, drawings, specifications, and designs
- Product details, samples, prototypes, and processes
- Supply chain structure and sourcing strategy
- Any information derived from the above

Confidential Information may be disclosed in written, oral, electronic, visual, or any other form. All Confidential Information remains the exclusive property of Dessimate.

4. OBLIGATIONS

Vendor shall:

- Maintain all Confidential Information in strict confidence
- Use Confidential Information solely for the Purpose
- Not disclose such information to any third party without prior written consent
- Limit access internally on a strict need-to-know basis
- Protect such information with at least reasonable care
- Promptly notify Dessimate of any unauthorized disclosure

5. TERM

This Agreement shall remain in effect for Five (5) years. Upon expiration, this Agreement may be renewed upon mutual written agreement of both parties. This Agreement may be terminated by mutual written consent of both parties.

All confidentiality and protection obligations shall survive for Five (5) years from the date of disclosure of Confidential Information.

6. INTELLECTUAL PROPERTY

All intellectual property rights remain with Dessimate.

No license, ownership, or rights are granted to Vendor by disclosure of Confidential Information.

Vendor shall not copy, reverse engineer, or use such information beyond the Purpose.

7. NON-CIRCUMVENTION AND PROTECTION

For a period of Five (5) years from the date of last disclosure of Confidential Information, Vendor agrees as follows:

(a) Acknowledgment of Dessimate's Role

Vendor acknowledges that Dessimate is the commercial interface with its customers and that all customer relationships, opportunities, and programs introduced by Dessimate are proprietary to Dessimate.

(b) Strict Non-Circumvention

Vendor shall not, directly or indirectly:

- Bypass, circumvent, or attempt to bypass Dessimate in any transaction
- Engage directly with any Dessimate customer (including but not limited to Det-Tronics, where applicable)
- Structure transactions to eliminate or reduce Dessimate's role or margin

(c) No Direct Customer Engagement

Without prior written consent from Dessimate, Vendor shall not:

- Contact, solicit, or communicate with any Dessimate customer
- Submit quotations, proposals, or pricing directly
- Provide samples, designs, or technical information

(d) Non-Solicitation

Vendor shall not:

- Solicit or divert Dessimate customers or opportunities
- Interfere with Dessimate's business relationships
- Offer similar products outside Dessimate's involvement

(e) Limited Non-Competition (Confidential Information-Based)

Vendor shall not use Dessimate's Confidential Information to:

- Develop or supply similar products directly to Dessimate's customers
- Establish competing supply chains derived from Dessimate's information

(f) No Indirect Circumvention

Vendor shall not perform any restricted activity through:

- Affiliates, subsidiaries, or related entities
- Employees, agents, or consultants
- Distributors or third parties

(g) Protected Relationships

Any customer or opportunity introduced by Dessimate shall be deemed a protected relationship, unless Vendor proves prior independent relationship with written evidence.

(h) Remedies

Vendor agrees that breach will cause irreparable harm. Dessimate shall be entitled to:

- Immediate injunctive relief
- Recovery of lost profits and damages
- Reimbursement of legal fees

(i) Deemed Participation

Any transaction conducted in violation of this Section shall be deemed conducted on behalf of Dessimate, and Dessimate shall be entitled to full economic benefit.

8. Exceptions

Confidentiality does not apply to information that:

- Is publicly available through no fault of Vendor
- Is required by law to be disclosed
- Was independently developed without use of Confidential Information

Vendor bears the burden of proof.

9. GOVERNING LAW

This Agreement shall be governed by the laws of the State of California.

Any disputes shall be resolved by binding arbitration in California under the rules of the American Arbitration Association (AAA).

10. General

- This Agreement constitutes the entire agreement.
- Amendments must be in writing and signed
- If any provision is invalid, the remainder shall remain in effect

Dessimate

LLC

Name:

Title:

Vendor GMT CORPORATION PVT LTD

Name: Vineet Kumbhojkar

Title: Production Director

